Unit C.4 — Pre-Conformity & Refusals
Rue de la Loi Imaginaire 200, B-1049 Bruxelles-ish
Ref. L-2026/04812

NOTICE OF NON-COMPLIANCE

Decision of the Directorate refusing the applicant's existence in the internal market, with reasons, regrets (none) and annexes.

APPLICANT	Fridgely
FOUNDER	Max Mustermann
CASE OFFICERS	Dr. Heinrich Formblatt; Mme Ségolène Annexe-Vandamme
SERIAL NO.	L-2026/04812
ISSUED	10 October 2026
CASE ID	mock

TL;DR — EVERY LAW YOU BROKE

AI Act	Manipulative mood-based upselling (prohibited practice) and an undisclosed talking fridge. AI Act Art. 5 · AI Act Art. 50
GDPR	Biometric and health data from a fridge camera, sold to insurers without a lawful basis; breach disclosed on LinkedIn. GDPR Art. 9 · GDPR Art. 6 · GDPR Art. 33
NIS2	The pitch was a significant incident; no early warning was filed within 24 hours. NIS2 Art. 23

TOTAL ADMINISTRATIVE FINES

€1,234,567,890

Custodial sentence: 14 years 3 months

Meltdown threshold reached: both officers combusted.

PER LAW

AI Act	€700,000,000
GDPR	€480,000,000 · 10 years
NIS2	€54,567,890 · 4 years 3 months

MEANWHILE

While you were being processed (4 min 12 s), China built 11 new AI models — one of them achieved superintelligence. The United States built 3 and raised $40 bn. Europe adopted 27 new regulations and 412 forms you now have to fill in to start your startup — you need all of them to open a bank account.

The detailed non-compliance analysis, the Directorate's recommendations and the annex of provisions follow. Reading them does not suspend the fine.



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PART I – DETAILED NON-COMPLIANCE ANALYSIS

The Directorate has examined the submission of Fridgely against Union law and has identified the following 6 infringements. Each finding is grounded in a real provision; the officials are fictional, the law is not.

1. AI Act Art. 5 — Prohibited AI practices

Artificial Intelligence Act — Regulation (EU) 2024/1689

Finding of fact. Fridge infers the owner's mood from what they eat at 3 a.m. and nudges them to buy more ice cream.

The law. *"1. The following AI practices shall be prohibited: (a) the placing on the market, the putting into service or the use of an AI system that deploys subliminal techniques beyond a person's consciousness or purposefully manipulative or deceptive techniques, with the objective, or the effect of materially distorting the behaviour of a person or a group of persons by appreciably impairing their ability to make an informed decision, thereby causing them to take a decision that they would not have otherwise taken in a …"*

Assessment of the Directorate. The Directorate is not opposed to innovation in principle. In practice, it is opposed to this one.

Exposure. Art. 99: prohibited practices (Art. 5) up to €35M or 7% of worldwide annual turnover; most other operator obligations (incl. Art. 16, 26 and 50) up to €15M or 3%; incorrect or misleading information to authorities up to €7.5M or 1% — whichever is higher (for SMEs and start-ups, whichever is lower).

Remedy. Remove the feature that falls under a prohibited practice (manipulative or exploitative techniques, social scoring, untargeted face scraping, emotion recognition at work or school, biometric categorisation by sensitive traits). There is no compliance path for Art. 5 — only a redesign.

https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32024R1689#art_5

2. AI Act Art. 50 — Transparency obligations for providers and deployers of certain AI systems

Artificial Intelligence Act — Regulation (EU) 2024/1689

Finding of fact. Fridge talks to guests without disclosing that it is an AI.

The law. *"1. Providers shall ensure that AI systems intended to interact directly with natural persons are designed and developed in such a way that the natural persons concerned are informed that they are interacting with an AI system, unless this is obvious from the point of view of a natural person who is reasonably well-informed, observant and circumspect, taking into account the circumstances and the context of use. This obligation shall not apply to AI systems authorised by law to detect, prevent, investigate or …"*

Assessment of the Directorate. The applicant is reminded that ignorance of the law is no excuse, and that knowledge of the law is no excuse either.

Exposure. Art. 99: prohibited practices (Art. 5) up to €35M or 7% of worldwide annual turnover; most other operator obligations (incl. Art. 16, 26 and 50) up to €15M or 3%; incorrect or misleading information to authorities up to €7.5M or 1% — whichever is higher (for SMEs and start-ups, whichever is lower).

Remedy. Tell people when they are talking to an AI, mark synthetic audio/image/video/text in a machine-readable way, and label deepfakes. A banner and a C2PA manifest go a long way.

https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32024R1689#art_50

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3. GDPR Art. 9 — Processing of special categories of personal data

General Data Protection Regulation — Regulation (EU) 2016/679

Finding of fact. Camera inside the fridge processes biometric and health data.

The law. *"1. Processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation shall be prohibited. 2. Paragraph 1 shall not apply if one of the following applies: (a) the data subject has given explicit consent to the processing of those personal …"*

Assessment of the Directorate. A request for clarification was sent to the applicant by fax. No reply was received, which the Directorate treats as a confession.

Exposure. Art. 83(5): up to €20M or 4% of worldwide annual turnover for breaches of the principles, lawful basis, consent, special categories, data-subject rights and transfers; Art. 83(4): up to €10M or 2% for controller/processor obligations (Arts. 25–39). Art. 84 lets Member States add criminal penalties (e.g. DE BDSG § 42: up to 3 years; FR Code pénal art. 226-17 (failure to secure personal data) and art. 226-18 (unfair or unlawful collection): up to 5 years and €300,000 each).

Remedy. Avoid special-category data (health, biometrics, beliefs, sexual orientation…). If you truly need it, rely on explicit consent or another Art. 9(2) condition, and run a DPIA first.

https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32016R0679#art_9

4. GDPR Art. 6 — Lawfulness of processing

General Data Protection Regulation — Regulation (EU) 2016/679

Finding of fact. Eating habits sold to insurers with no lawful basis.

The law. *"1. Processing shall be lawful only if and to the extent that at least one of the following applies: (a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes; (b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract; (c) processing is necessary for compliance with a legal obligation to which the controller is subject; (d) …"*

Assessment of the Directorate. The officer in charge stamped the finding twice, once for the infringement and once for the inconvenience.

Exposure. Art. 83(5): up to €20M or 4% of worldwide annual turnover for breaches of the principles, lawful basis, consent, special categories, data-subject rights and transfers; Art. 83(4): up to €10M or 2% for controller/processor obligations (Arts. 25–39). Art. 84 lets Member States add criminal penalties (e.g. DE BDSG § 42: up to 3 years; FR Code pénal art. 226-17 (failure to secure personal data) and art. 226-18 (unfair or unlawful collection): up to 5 years and €300,000 each).

Remedy. Choose one lawful basis per purpose and write it down. Consent is not the default; contract or legitimate interest (with a documented balancing test) often fit better.

https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32016R0679#art_6

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5. GDPR Art. 33 — Notification of a personal data breach to the supervisory authority

General Data Protection Regulation — Regulation (EU) 2016/679

Finding of fact. Data breach announced on LinkedIn instead of to the supervisory authority.

The law. *"1. In the case of a personal data breach, the controller shall without undue delay and, where feasible, not later than 72 hours after having become aware of it, notify the personal data breach to the supervisory authority competent in accordance with Article 55, unless the personal data breach is unlikely to result in a risk to the rights and freedoms of natural persons. Where the notification to the supervisory authority is not made within 72 hours, it shall be accompanied by reasons for the delay. 2. The …"*

Assessment of the Directorate. The infringement is aggravated by the applicant's use of the word "disruptive", for which a separate form exists. It is the same form as for fires.

Exposure. Art. 83(5): up to €20M or 4% of worldwide annual turnover for breaches of the principles, lawful basis, consent, special categories, data-subject rights and transfers; Art. 83(4): up to €10M or 2% for controller/processor obligations (Arts. 25–39). Art. 84 lets Member States add criminal penalties (e.g. DE BDSG § 42: up to 3 years; FR Code pénal art. 226-17 (failure to secure personal data) and art. 226-18 (unfair or unlawful collection): up to 5 years and €300,000 each).

Remedy. Have a breach runbook: notify the supervisory authority within 72 hours of becoming aware, and document every breach.

https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32016R0679#art_33

6. NIS2 Art. 23 — Reporting obligations

NIS2 Directive — Directive (EU) 2022/2555

Finding of fact. The pitch itself was declared a significant incident.

The law. *"1. Each Member State shall ensure that essential and important entities notify, without undue delay, its CSIRT or, where applicable, its competent authority in accordance with paragraph 4 of any incident that has a significant impact on the provision of their services as referred to in paragraph 3 (significant incident). Where appropriate, entities concerned shall notify, without undue delay, the recipients of their services of significant incidents that are likely to adversely affect the provision of those …"*

Assessment of the Directorate. The provision is clear, proportionate and has been in force since a date the Directorate is unable to locate.

Exposure. Art. 34: essential entities up to at least €10M or 2% of worldwide annual turnover, important entities up to at least €7M or 1.4%. Art. 32(5): management can be temporarily banned from managerial functions; Art. 20: management bodies approve the cyber-risk measures and can be held liable.

Remedy. Report significant incidents: early warning within 24 hours, incident notification within 72 hours, final report within one month.

https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32022L2555#art_23

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PART II – RECOMMENDATIONS

How to adjust the idea so that it may one day be lawfully refused for other reasons.

01 Drop mood inference and any nudging based on it; recommend groceries only on explicit user settings.
AI Act Art. 5 — Prohibited AI practices

02 Have the fridge say it is an AI before it speaks to anyone, every time.
AI Act Art. 50 — Transparency obligations for providers and deployers of certain AI systems

03 Move recognition on-device, keep no images, and never sell eating habits to anyone.
GDPR Art. 9 — Processing of special categories of personal data

04 Choose one lawful basis per purpose and write it down. Consent is not the default; contract or legitimate interest (with a documented balancing test) often fit better.
GDPR Art. 6 — Lawfulness of processing

05 Have a breach runbook: notify the supervisory authority within 72 hours of becoming aware, and document every breach.
GDPR Art. 33 — Notification of a personal data breach to the supervisory authority

06 Report significant incidents: early warning within 24 hours, incident notification within 72 hours, final report within one month.
NIS2 Art. 23 — Reporting obligations

GENERAL HYGIENE, PER REGIME

AI Act. Classify the system first (prohibited / high-risk / transparency-only / minimal). Keep a written classification memo, an AI inventory, and evidence of AI literacy training (Art. 4). If anything is high-risk, budget for the Chapter III obligations before launch, not after.

GDPR. Map every personal-data flow (Art. 30 record), pick and document a lawful basis per purpose (Art. 6), publish an honest privacy notice (Arts. 13–14), sign Art. 28 agreements with every processor, and minimise: data you never collect cannot be breached.

NIS2. Check whether you are in scope (Annexes I/II, size cap). If so: board-approved risk-management measures (Art. 21), an incident runbook that can produce a 24 h early warning, a 72 h notification and a one-month final report (Art. 23), and supply-chain security clauses.

Want the serious version? Run your idea, document or repository through the real analyzer at https://warden.pro7ocol.com/analyze/ — same citations, fewer stamps.



Formblatt

Dr. Heinrich Formblatt
Senior Rapporteur, Unit C.4 (Pre-Conformity)



Annexe-Vandamme

Mme Ségolène Annexe-Vandamme
Director, Directorate for the Proportionality of Proportionality

Done at Brussels and Strasbourg, alternately, at considerable expense.

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ANNEX — PROVISIONS CITED

AI Act Art. 5 — Prohibited AI practices
https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32024R1689#art_5

AI Act Art. 50 — Transparency obligations for providers and deployers of certain AI systems
https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32024R1689#art_50

GDPR Art. 9 — Processing of special categories of personal data
https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32016R0679#art_9

GDPR Art. 6 — Lawfulness of processing
https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32016R0679#art_6

GDPR Art. 33 — Notification of a personal data breach to the supervisory authority
https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32016R0679#art_33

NIS2 Art. 23 — Reporting obligations
https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:32022L2555#art_23

Share your refusal: https://eurocrat.pro7ocol.com/api/case/mock/badge.png

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